DATED 2019

NICOLA JOHNSON

and

CHARLES RUSSELL SPEECHLYS LLP

CONDITIONAL FEE AGREEMENT

THIS AGREEMENT is dated

(1) **NICOLA JOHNSON** of Warwick House, 8 Addison Crescent, London, W14 8JP ("**you**").

(2) **CHARLES RUSSELL SPEECHLYS LLP** of 5 Fleet Place, London, EC4M 7RD (registered number OC311850) ("**we**").

This agreement is retrospective to cover work done on this matter before this agreement was signed

AGREED TERMS

1 **INTERPRETATION**

In this agreement, unless the context otherwise requires, the following words and expressions have the following meanings:

"Assignee"

means such entity, company, individual or organisation who is at the relevant time the assignee, transferee or successor with the benefit of the legal charge between Warwick Estates Limited and the Opponent dated on or around 2 February 2009 or any other loan or any other charge or any other form of indebtedness previously entered into between Warwick Estates Limited and the Opponent.

"Claim"

means your action, claim, complaint or demand against the Opponent that you or Warwick Estates Limited should not be bound by the legal charge entered into between Warwick Estates Limited and Barclays Bank PLC dated on or around 2 February 2009 in favour of the Opponent currently registered against 8 Addison Crescent, London, W14 8JP with title number BGL25559.

"Damages"

means money that the Opponent is ordered to pay or that the Opponent agrees to pay whether to you or Warwick Estates Limited in settlement of the Claim.

"Debt Reduction"

means directly or indirectly reducing the amount of capital that you or Warwick Estates Limited have to repay, reducing the amount of interest that you or Warwick Estates Limited are required to pay or a reduction to any other form of indebtedness you or Warwick Estates Limited have to pay (including, but not limited to, monies owed pursuant to an overdraft (whether authorised or unauthorised)) or some other similar or analogous award or settlement.

"Disbursements"

means expenses paid on your behalf, such as experts' fees, court fees, photocopying, travelling expenses and translators' fees.

"Our Fees"

means the amounts which we can charge for the work which we do on your Claim, charged at the normal hourly rates set out below but not including the Success Fee. Our Fees are retrospective to 1 May 2018 but for the period 1 May 2018 until 10 October 2018 will be capped at £10,000 plus VAT.

"Interim Application"

means an application for an order made in the course of proceedings which usually leads to an interim court hearing as opposed to the final trial.

"Lien"

means our right to keep all papers, documents, money or other property held on your behalf until all money due to us is paid.

"Loses the Claim"

means where the court dismisses your Claim without making any award of Damages or Debt Reduction or where you discontinue the Claim on our advice with no agreement or order for payment of Damages or Debt Reduction.

"Opponent"

means Barclays Bank PLC and any other party against whom you proceed in this Claim or in claims heard with this Claim, or any one or more of them.

"Offer"

means an offer to settle the Claim whether or not made in accordance with Part 36 of the Civil Procedure Rules.

"Success Fee"

means the percentage (as set out in Schedule 1) of Our Fees at the normal rates which are added to your bill if you Win the Claim. The Success Fee will only apply to Our Fees incurred from 1 May 2018.

"Win the Claim"

means where your Claim is decided in your favour, whether as a result of the court ordering the Opponent to pay you or Warwick Estates Limited Damages, interest or costs and/or the court ordering rescission of the legal charge between Warwick Estates Limited and Barclays Bank PLC dated on or around 2 February 2009 and/or the court making an award of restitution in your or Warwick Estate Limited's favour and/or the court making an award of Debt Reduction and/or the Opponent agreeing to pay Damages, interest or costs to you or Warwick Estates Limited and/or the Opponent offering Debt Reduction and/or any Assignee offering Debt Reduction and/or Damages, irrespective of whether a costs order is made in your favour.

1.1 **WHAT IS COVERED BY THIS AGREEMENT**

1.1.1 Your Claim.

1.1.2 Any application for permission to appeal or any appeal by you.

1.1.3 Any appeal by you against an interim order.

1.1.4 Any steps taken to enforce a judgment, order or agreement.

1.2 **WHAT IS NOT COVERED BY THIS AGREEMENT**

1.2.1 Any counterclaim against you.

1.2.2 Any application for permission to appeal or any appeal by the Opponent.

1.2.3 Any appeal by the Opponent against an interim order.

2 **FEES AND DISBURSEMENTS**

2.1 The provisions of our letter of engagement with you dated 17 January 2019 (the "**Engagement Letter**") will continue to apply save as varied by the terms of this agreement from the date stated at the beginning of this agreement.

2.2 Under this agreement, Our Fees are calculated by reference to the hourly rates set out below. We review the hourly rates at the end of our financial year (30 April) with any changes brought into effect from 1 May each year. We will notify you of any changes in the rates in writing.

	Hourly rates £
Peter Levaggi	£410
Joe Edwards	£305
Other senior assistants	£330 to £285
Other junior assistants	£235 to £220
Trainee solicitors	£155
Paralegals	£165

3 WHAT HAPPENS IF YOU WIN

3.1 If you Win the Claim, you will be liable for Our Fees at the hourly rates set out above, together with disbursements and the Success Fee. Payment of counsel's fees is dealt with in clause 5 below.

3.2 Normally, you will be entitled to seek recovery of Our Fees (excluding the Success Fee), disbursements and counsel's fees from the Opponent. If these cannot be agreed by the parties, the court will decide how much can be recovered. It is unusual for the court to order recovery of all of the costs claimed on assessment. If the amount agreed or allowed by the court does not cover the full amount of Our Fees and disbursements billed to you, then you remain liable to pay the difference.

3.3 The Success Fee, the costs of setting up this agreement and the costs of liaising with ATE insurers (if applicable) cannot be recovered from the Opponent, but remain payable by you.

3.4 If you win on an Interim Application during the case and the court orders the Opponent to pay your costs of that application, you will be liable for Our Fees at the normal rates for that application in any event, but you will only become liable to pay the Success Fee on those fees if you Win the Claim.

3.5 You agree that we shall receive all sums that the Opponent is ordered to pay or agrees to pay. Out of the money, you agree that we can take any fees (including the Success Fee) and disbursements due to us and you can take the balance.

3.6 If the Opponent is ordered to pay some or all of your costs, interest can be claimed on the amounts due from the Opponent from the date of the award. We are entitled to keep this interest.

3.7 If the Opponent makes an Offer which you reject on our or counsel's advice and you obtain judgment in your favour but for less than the Offer, we will not add the Success Fee for work done after the date of service of the Offer. You will still be liable for Our Fees and disbursements.

3.8 If the Opponent makes an Offer which you reject against our or counsel's advice and you obtain judgment in your favour but for less than the Offer, you will be liable for the Success Fee, as well as our fees and disbursements.

3.9 If the Opponent does not pay all or any of the Damages, fees, interest or disbursements owed to you, we have the right to take recovery action in your name to enforce any judgment, order or agreement. The cost of doing this will be payable by you under the terms of this agreement. You agree to cooperate fully with us in any such recovery action.

4 WHAT HAPPENS IF YOU LOSE

If you Lose the Claim, you will be liable for disbursements. You will not be liable for Our Fees or the Success Fee.

Usually, you will also be liable for the costs and disbursements of the Opponent. You may be able to take out an insurance policy against this risk (see clause 7 below). If you are insured against payment of these amounts by an insurance policy, we will make a claim on your behalf and receive any resulting payment in your name. We will give you a statement of account for all money received and paid out.

In addition, you will be liable for any damages and interest awarded or agreed against you if the Opponent succeeds in any counterclaim against you.

Payment in respect of counsel's fees is dealt with in clause 5 below.

5 COUNSEL'S FEES

Counsel's fees are payable by you (and, if you win, you will normally be entitled to recover all or part of their fees from the Opponent) unless counsel is acting under a conditional fee agreement with us. If Counsel is acting under a conditional fee agreement, if you win you will normally be entitled to recover some or all of counsel's fees from the Opponent. We will discuss counsel's success fee with you before instructing him or her. If you lose, and counsel is acting under a conditional fee agreement, you will pay counsel nothing.

6 VALUE ADDED TAX (VAT)

VAT will be added at the rate which applies when the work is done (currently 20%) to all of Our Fees and the Success Fee. VAT is also payable on certain disbursements.

7 INSURANCE

7.1 Before entering into this agreement, we discussed with you the possibility of taking out after the event insurance to cover your liability for the Opponent's costs and disbursements and/or to cover your liability for our disbursements.

7.2 You will be responsible for paying the insurance premium for this if you win. If you lose, the premium may or may not be payable by you, depending on the terms of the policy.

8 RIGHT TO APPLY FOR AN ASSESSMENT

You have the right to an assessment by the court of the amount of Our Fees, the Success Fee and/or disbursements which are payable by you under this agreement, by making an application under section 70 of the Solicitors Act 1974. There are time limits for that application, including an absolute right to assessment if you apply to the court within one month of delivery to you of the bill of costs, and a gradual reduction of the right the longer it is left thereafter, which we will inform you about if asked. You are of course welcome to seek advice from another law firm about this but would have to pay for that.

9 LIEN

We are entitled to keep any money, papers, documents or other property held on your behalf until all money due to us is paid. A lien may be applied after this agreement ends.

10 RESPONSIBILITIES

10.1 Your responsibilities include giving us full, honest and timely instructions, not asking us to work in an improper or unreasonable way, cooperating fully with us in the preparation of your claim, and attending any meeting or court hearing which we reasonably request you to attend

10.2 Our responsibilities include always acting in your best interests, subject to our overriding duty to the court, explaining to you the risks and benefits of taking legal action, giving you the best

information possible about the likely costs of the claim and the different methods of funding those costs.

11 TERMINATION

11.1 You can end this agreement in writing at any time. If you end this agreement you must pay Our Fees for the work done to the termination date and disbursements and counsel's fees. If you continue and Win the Claim, we have the right to decide whether you will also have to pay the Success Fee for that work.

11.2 We can end this agreement if you reject our advice to accept a reasonable offer from the Opponent or any Assignee to settle this Claim. In those circumstances, you must pay Our Fees, counsel's fees and disbursements. If you continue with the Claim and Win the Claim, you will also have to pay the Success Fee for that work.

11.3 We can end this agreement if you do not meet your responsibilities. If this happens, you will have to pay Our Fees for the work done to the termination date, counsel's fees and disbursements.

11.4 We can end this agreement if we believe you no longer have a reasonable prospect of success. If this happens, you will only have to pay our disbursements. These will include counsel's fees if counsel does not have a conditional fee agreement with us.

11.5 We can end this agreement if you die before this Claim is resolved. If this happens, we will be entitled to recover Our Fees, counsel's fees and the disbursements up to the date of your death from your estate.

11.6 We can end this agreement if you enter into bankruptcy proceedings before the Claim is resolved. If this happens, we will be entitled to recover Our Fees, counsel's fees and the disbursements up to the date of you entering into the bankruptcy proceedings.

12 SEVERABILITY

If any provision of this agreement, or any variation of it, is found to be void or unenforceable, that provision shall be deemed to be deleted from this agreement and the remaining provisions of this agreement shall continue in full force and effect and the parties shall use their respective reasonable endeavours to procure that any such provision is replaced by a provision which is valid and enforceable, and which gives effect to the spirit and intent of this agreement.

13 GOVERNING LAW AND JURISDICTION

13.1 This agreement and any dispute or claim arising out of or in connection with it or its subject matter shall be governed by and construed in accordance with the law of England and Wales.

13.2 The parties irrevocably agree that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim that arises out of or in connection with this agreement or its subject matter.

14 ENTIRE AGREEMENT

14.1 This agreement constitutes the whole agreement between the parties and supersedes all previous agreements between the parties relating to its subject matter, except for the Engagement Letter dated 17 January 2019 as varied by this agreement.

14.2 Each party acknowledges that, in entering into this agreement, it has not relied on, and shall have no right or remedy in respect of, any statement, representation, assurance or warranty (whether made negligently or innocently) other than as expressly set out in this agreement, save as aforesaid.

14.3 Nothing in this clause shall limit or exclude any liability for fraud.

15 **WARRANTY OF AUTHORITY**

The person who signs this agreement on your behalf hereby warrants that they are duly authorised to do so and that their signature legally binds you.

16 **COUNTERPARTS**

This agreement may be signed in a number of counterparts, and shall come into force once each party has signed such a counterpart in identical form and exchanged the same with the other party.

This agreement has been entered into on the date stated at the beginning of it.

Signed by **NICOLA JOHNSON**)
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Signed by **PETER LEVAGGI** for and on behalf of)
Charles Russell Speechlys LLP:)
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Partner

SCHEDULE 1

Success Fee

The Success Fee is staged as follows:

1. If the Claim is settled before proceedings are commenced, 25% of Our Fees at the normal rates;

2. If the Claim is settled after the date of issue of proceedings until the date being two months before the commencement of trial, 75% of Our Fees at the normal rates; and

3. 80% of Our Fees thereafter.

The Success Fee percentage reflects the following:

1. The fact that if you lose, we will earn nothing.

2. Our assessment of the risks of your case and that Simon Farrell QC gave limited prospects of success (no more than 50%)

3. The fact that if you win we will not be paid our basic charges until the end of the claim.